

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT
for
Landfill Leachate System Design, Modification, and Maintenance

This Professional Services Agreement ("Agreement") is made and entered into by and between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Terracon Consultants, Inc. located at 1901 Sharp Point Drive, Suite C, Fort Collins, Colorado 80525 ("Consultant"). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK**
The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.
2. **TIME OF PERFORMANCE**
The work included in this Scope of Work will be completed by September 30, 2028, as stated in Exhibit A.
3. **COMPENSATION**
In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of eighty-five thousand dollars (\$85,000.00) as stated in Exhibit A.
4. **CONSULTANT RESPONSIBILITY**
In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.
5. **COMPLIANCE WITH LAWS**
The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Consultant's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties

under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES (49 C.F.R. Part 26)
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION

The term of this Agreement shall be from date of execution to September 30, 2028. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty (30) days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. ENTIRETY OF AGREEMENT

This Agreement consisting of seven (7) pages, and Exhibit A consisting of five (5) pages, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kylie Soden, City Clerk

Date: _____

Consultant

By: _____

Print Name: _____

Date: _____



1901 Sharp Point Drive, Suite C
Fort Collins, CO 80525
P (970) 484-0454
F (970) 484-0454
Terracon.com

June 10, 2026

City of Cheyenne
1461 Happy Jack Road
Cheyenne, Wyoming 82009

Attn: Mr. Samuele Quattrini, Landfill Manager
E: squattrini@cheyennecity.org

**Re: Proposal for Leachate System Maintenance
City of Cheyenne Happy Jack Landfill
1467 Happy Jack Road
Cheyenne, Wyoming
Terracon Proposal No. P20227120**

Dear Mr. Quattrini:

Terracon Consultants, Inc. (Terracon) appreciates the opportunity to submit this proposal to the City of Cheyenne (client) to perform maintenance associated with the leachate discharge systems at the above-referenced site for a two-year period, July 2026 through June 2028. The following sections provide an outline of the project, Terracon's scope of services, including schedule, and compensation.

Scope of Services

(see Section 2 below)

- Task 1 - Quarterly and semi-annual maintenance at NT-3, NT-4, Cell 1 and Cell 2 with corresponding reporting
- Task 1b - Semi-annual maintenance at NT-5
- Task 2 - Out of Scope services
-

Compensation

- Task 1a - \$6,700 per event
- Task 1b - \$4,100 per event
- Task 2 - \$15,000 (time and materials)

Estimated Total - \$85,000

1.0 PROJECT INFORMATION

The Happy Jack Landfill site includes leachate collection pumping systems that includes a total of seven wells, NT-1 through NT-5, Cell 1 and Cell 2, with varying well casing diameters and depths. Leachate collection wells NT-3 through NT-5, Cell 1 and Cell 2 are each equipped with a submersible leachate recovery pump, digital flow meter, pressure transducer and pump controller. The pump controllers use fluid level data from pressure transducers to activate the recovery pump when the leachate fluid level reaches approximately one foot above the landfill liner depth. Upon pump activation, NT-3 and NT-4 are pumped to a manifold that is then discharged to an on-site evaporation pond. Upon pump activation at NT-5, leachate is pumped to an on-site evaporation pond. Upon pump activation, liquid in Cell 1 and Cell 2 is pumped to a manifold that is then discharged to an on-site evaporation pond.

Explore with us

Terracon field personnel previously verified that well NT-1 and NT-2 were intact but did not contain any pump, effluent piping, or pump controller. Additionally, confined space entry is required for inspection and cleaning of the pump associated with NT-5, which is reflected in the scope of services, schedule, and compensation.

2.0 SCOPE OF SERVICES

2.1 Quarterly and Semi-Annual Scheduled Routine Operation and Maintenance

At your request, Terracon will conduct quarterly and semi-annual maintenance and reporting, or as requested by the City of Cheyenne. At this time, maintenance will include:

Quarterly Maintenance at Wells NT-1 and NT-4

- Manually gauge the fluid level in wells NT-1 through NT-4
- Gauge the total depth of each well and calculate the standing fluid column in NT-1 through NT-4 and evaluate the presence of sediments
- Record the fluid level reading on the pump controller and review the controller settings (NT-3 and NT-4)
- Record pump run time (NT-3 and NT-4)
- Record flow meter reading (NT-3 and NT-4)
- Inspect effluent hoses and clear of any debris or ice (NT-3 and NT-4)
- Record the pump setting depth and remove the pumps in each well (NT-3 and NT-4)
- Visually inspect each pump, pressure transducer and the wiring connections (NT-3 and NT-4)
- Test leachate pumps (NT-3 and NT-4). If a test indicates that a pump has failed or cannot be repaired in the field, Terracon will contact client regarding parts, cost, and schedule

Quarterly Maintenance at Well NT-5

- Record pump run time
- Record flow meter reading
- Inspect effluent hoses located above-grade and clear of any debris or ice
- Test leachate pump. If a test indicates that a pump has failed or cannot be repaired in the field, Terracon will contact client regarding parts, cost, and schedule

Semi-annual maintenance at NT-5 to include the following:

- Confined space entry and atmospheric monitoring using a 4-gas meter
- Remove and visually inspect the pump, pressure transducer and the wiring connections
- Clean and test the pump. If a test indicates that a pump has failed or cannot be repaired in the field, Terracon will contact the client

Quarterly Maintenance at Cell 1 and Cell 2

- Record the pump run time and the flow meter reading for
- Record the fluid level reading on the pump controller and review the controller settings
- Inspect effluent hoses and clear of any debris or ice, replace if damaged
- Remove and visually inspect pump, pressure transducer and the wiring connections
- Clean the surface of the pumps, pump intakes and pressure transducers,

- Test the leachate pumps. If a test indicates that a pump has failed or cannot be repaired in the field, Terracon will contact client

Following each site visit, Terracon will submit an email summarizing the field activities.

2.2 Out of Scope Services (Two-Year Contract)

In addition to the above referenced scheduled routine maintenance: additional maintenance, repairs and/or equipment may be recommended or required for system operation during the two-year contract period, including non-routine site visits and emergency site visits. The additional out of scope services may include, but is not limited to, the following:

- Pump replacement including testing and reprogramming to verify proper working condition (City of Cheyenne to provide replacement pumps, Terracon can provide cost estimates for pumps and equipment as requested)
- Pressure transducer replacement including calibration and reprogramming (City of Cheyenne to provide replacement parts, Terracon can provide cost estimates for pressure transducers and equipment as requested)
- Effluent hose replacement
- Additional cleanout or repairs of piping and equipment
- Provide 72-hour on-call emergency troubleshooting

2.3 Health and Safety

Terracon has a 100% commitment to the safety of all its employees. As such, and in accordance with our Incident and Injury Free® safety culture, Terracon will update the existing safety plan to be used by our personnel during field services. Prior to commencement of on-site activities, Terracon will hold a meeting to review health and safety needs for this specific project, including confined space entry protocol. At this time, we anticipate performing fieldwork in a USEPA Level D work uniform consisting of hard hats, safety glasses, protective gloves, and steel-toed boots. Additional safety procedures will be utilized for confined space entry. It may become necessary to upgrade this level of protection, at additional cost, while maintenance activities are being conducted, if chemical constituents are encountered in vapors, soils, leachate, or groundwater that may pose an increased risk for personal exposure.

2.4 Schedule

Terracon is prepared to commence work with a minimum of one-week notice. We anticipate a response time of approximately 72 hours for emergency calls, depending on personnel availability. We anticipate completing routine maintenance events in one day each.

Terracon's services will be performed in a manner consistent with generally accepted practices of the professional undertaken in similar studies in the same geographic area during the same period. Terracon makes no warranties, expressed or implied, regarding its services, findings, conclusions, or recommendations.

3.0 COMPENSATION

The Scope of Services outlined in this proposal over an annual contract period will be performed on a lump sum basis for quarterly and semi-annual maintenance, and a time and material basis in for out-of-scope services and design services in general accordance the attached Fee Schedule. Estimated costs are as follows:

Category	Quantity	Rate	Total
Task 1a – Quarterly Maintenance	8	\$6,700 per event	\$53,600
Task 1b – Semi-Annual Maintenance at NT-5	4	\$4,100 per event	\$16,400
Task 2 – Out of Scope Services	1	Time and Materials	\$15,000
Estimated Total			\$85,000

If, as a result of these services, additional work is required outside the scope of this proposal, you will be contacted, and upon request, proposed costs for additional work will be provided. Authorization will be obtained prior to commencement of any additional work outside the scope of this proposal.

This proposal and cost estimate was prepared based on the following assumptions:

- Client will provide to Terracon, prior to mobilization, legal right of entry to the site (and other areas if required) to conduct the scope of services.
- Client will notify Terracon, prior to mobilization, of any restrictions, special site access requirements, or known potentially hazardous conditions at the site (e.g., hazardous materials or processes, specialized protective equipment requirements, unsound structural conditions, etc.)
- Replacement materials and equipment to be provided by the Client or billed on a time and materials basis.
- Terracon will not be responsible for repairing or replacing equipment if it is damaged as part of this work scope, with the equipment to be replaced by the City of Cheyenne.
- The new flow meter with flanges can be attached to the existing piping at NT-5.
- The new pump and associated equipment for NT-5 will be installed utilizing the existing piping including from the pump to the manhole and from the manhole to the evaporation pond.
- Work can be performed during normal business hours (Monday through Friday, 7:00 am to 5:00 pm).
- Traffic control services are not required.
- The site is readily accessible by truck.

If any of these assumptions or conditions are not accurate or change during the project, the stated fee is subject to change. Please contact us immediately if you are aware of any inaccuracies in these assumptions and conditions, so we may revise the proposal or fee.

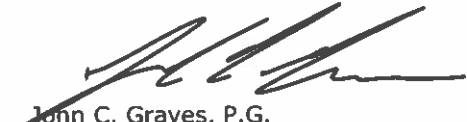
4.0 GENERAL COMMENTS

This proposal is valid for 60 days from the date of this proposal. If this proposal meets with your approval, please provide Terracon with a contract for review. We appreciate the opportunity to provide this proposal and look forward to collaborating with you on this project. If you have any questions or comments regarding this proposal, please contact John Skogman at 970-658-4392 or John.Skogman@terracon.com.

Sincerely,
Terracon Consultants, Inc.



John Skogman, P.E.
Senior Environmental Engineer



John C. Graves, P.G.
Senior Principal